RECORDING COVER SHEET PER ORS 205.234
THIS COVER SHEET HAS BEEN PREPARED BY THE PERSON PRESENTING THE ATTACHED INSTRUMENT FOR RECORDING. ANY ERRORS IN THIS COVER SHEET DOES NOT AFFECT THE TRANSACTION(S) CONTAINED IN THE INSTRUMENT ITSELF.

Washington County, Oregon **2023-000633**
D-WRIT **01/06/2023 08:43:13 AM**
Stn=11 C WHITE **$86.00**
$70.00 $11.00 $5.00

I, Joe Nelson, Director of Assessment and Taxation and Ex-Officio County Clerk for Washington County, Oregon, do hereby certify that the within instrument of writing was received and recorded in the book of records of said county.

Joe Nelson, Director of Assessment and Taxation, Ex-Officio County Clerk

AFTER RECORDING RETURN TO:
McCarthy & Holthus, LLP
920 SW 3rd Ave, 1st Floor
Portland, OR 97204

M&H File No.: OR-16-739403-JUD

1. TITLE OF THE TRANSACTION (ORS 205.234a)
WRIT OF EXECUTION

2. Grantor(s) (2nd Party/Defendant) and Address: (ORS 205.160)
Agustina L. Monckton, Gerald G. Monckton Jr.

1730 Southwest 203rd Avenue, Aloha, OR 97006

3. Grantee(s) (1st Party/Plaintiff) and Address: (ORS 205.1251a and 205.160)
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14

One Mortgage Way,

Mount Laurel, NJ, 08054

4. Trustor (s) : (ORS 205.234)
Agustina L. Monckton
1730 Southwest 203rd Avenue
Aloha, OR 97006
Original Borrower

Gerald G. Monckton Jr.
1730 Southwest 203rd Avenue
Aloha, OR 97006
Original Borrower

5. Other Parties (Named Defendants)
Mortgage Electronic Registration Systems, Inc., Millennia Mortgage Corporation, JPMorgan Chase Bank, N.A., Turning Leaf Homes LLC, Shadow Woods Homeowners Association, Occupants of the Property,

6. TRUE AND ACTUAL CONSIDERATION PAID (ORS 93.030) $ 0.00

7. SEND TAX STATEMENTS TO:
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14, C/O PHH Mortgage Corporation, Attention: Vault 5720 Premier Park Drive, West Palm Beach, FL 33407

8. If this instrument is being Re-Recorded, complete the following statement: (ORS 205.244)

Being Re-Recorded to correct _____

Previously recorded as Document No. _____

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14, Plaintiff, vs. AGUSTINA L. MONCKTON; GERALD G. MONCKTON, JR.; MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.; MILLENNIA MORTGAGE CORPORATION; TURNING LEAF HOMES LLC; SHADOW WOODS HOMEOWNERS ASSOCIATION; OCCUPANTS OF THE PROPERTY, Defendants.	Case No.: 18CV01284 WRIT OF EXECUTION IN FORECLOSURE

TO THE WASHINGTON COUNTY SHERIFF:

A Judgment of Foreclosure was entered and docketed in this case on December 19, 2018. A true copy of the Judgment is attached hereto. The Judgment was entered in favor of the Plaintiff:

MCCARTHY & HOLTHUS, LLP
920 SW 3RD AVE, 1ST FLOOR
PORTLAND, OR 97204
PH: (971) 201-3200
FX: (971) 201-3202

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Requested By: ssteele, Printed: 1/27/2023 12:19 PM

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14
c/o Michael Scott
Attorney for Plaintiff
McCarthy & Holthus, LLP
920 SW 3rd Ave, 1st Floor
Portland, OR 97204

With the adjudicated amount due of $400,614.46, plus pre judgment interest at the per diem of $49.21 from 12/4/2018 to 12/19/2018 in the amount of $738.14, plus post judgment interest at the statutory rate of 9.0% per annum from 12/19/2018 to 12/12/2022 in the amount of $143,794.19, and continuing with a per diem of $98.96, currently totaling $545,146.80.

NOW, THEREFORE, IN THE NAME OF THE STATE OF OREGON, you are hereby commanded to sell, in the manner prescribed by law for the sale of real property on execution (subject to redemption of 180 days), all of the interest that the Defendant had on or about July 21, 2006, the date of the Deed of Trust, and also the interest that the Defendant had thereafter, in the real property described in the attached Exhibit 1, APN R290991 and commonly known as: 1730 Southwest 203rd Avenue, Aloha, OR 97006.

Sale of the property is to satisfy the sum listed above, plus the costs incurred in performing this Writ. Pursuant to ORS 18.872, you are authorized to continue execution under the writ and delay making a return on the writ to no later than 150 days from receipt of the writ. You are to make the return within 60 days after you receive this Writ. Should the sale be continued, the writ may be automatically extended for 30 days.

DATED: 19 day of December, 2022.

Washington County Circuit Court Clerk
Title

By: _____

12/19/2022 11:10:34 AM

MCCARTHY & HOLTHUS, LLP
920 SW 3RD AVE, 1ST FLOOR
PORTLAND, OR 97204
PH: (971) 201-3200
FX: (971) 201-3202

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Dated: December 7, 2022 and submitted by:

McCarthy & Holthus, LLP

s/Grace Chu

_ John Thomas OSB No. 024691
_ Grace Chu OSB No. 220848
_ Michael Scott OSB No. 973947
920 SW 3rd Ave, 1st Floor
Portland, OR 97204
Phone: (971) 201-3200
Fax: (971) 201-3202
gchu@mccarthyholthus.com
Of Attorneys for Plaintiff

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EXHIBIT “1”

LEGAL DESCRIPTION

Lot 165, SHADOW WOOD NO. 5, in the County of Washington, State of Oregon.

Exhibit 1
1 of 1

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC., MORTGAGE ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-QS14, Plaintiff, vs. AGUSTINA L. MONCKTON; GERALD G. MONCKTON, JR.; MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.; MILLENNIA MORTGAGE CORPORATION; TURNING LEAF HOMES LLC; SHADOW WOODS HOMEOWNERS ASSOCIATION; OCCUPANTS OF THE PROPERTY, Defendants.	Case No.: 18CV01284 GENERAL JUDGMENT OF FORECLOSURE

1.

THIS MATTER came before the Court on Plaintiff's motion.

All defendants ("Defendants") were duly served with process and failed to appear; the default has been entered against Defendants, and it appearing that Defendants are not incapacitated, protected persons, respondents as defined in ORS 125.005, minors, or in the military service of the United States;

a. A Limited Judgment has been entered with regard to Defendants MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.; MILLENNIA MORTGAGE CORPORATION; SHADOW WOODS HOMEOWNERS ASSOCIATION;

MCCARTHY & HOLTHUS, LLP
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IT IS HEREBY ADJUDGED that Plaintiff shall have judgment as follows:

a. The real property to which this judgment relates is located and situated in Washington County, Oregon, and is commonly known as 1730 Southwest 203rd Avenue, Aloha, OR 97006 aka 1730 Southwest 203rd Avenue, Aloha, OR 97003 (the "Subject Property"), legally described as shown in the attached *Exhibit 1*, and having APN/Parcel No. R290991.

b. Plaintiff is entitled to enforce the note dated July 21, 2006 and made, delivered, and executed by AGUSTINA L. MONCKTON and GERALD G. MONCKTON JR. to MILLENNIA MORTGAGE CORP. in the amount of $232,000.00 (the "Note"). The Note was transferred to Plaintiff by delivery of possession and by indorsement set forth on the Note.

c. A deed of trust was made, executed, and delivered by Defendants AGUSTINA L. MONCKTON and GERALD G. MONCKTON JR. on or about July 25, 2006 (the "Deed of Trust"). The Deed of Trust was recorded on August 22, 2006 as Instrument No. 2006-100654 in the official records of Washington County, Oregon. The Deed of Trust is a valid and perfected lien against all of the Property for and securing the Amount Due. The lien of the Plaintiff is superior to any interest, lien, or claim of the Defendants and shall remain in effect until issuance of a Sheriff's Deed.

d. Plaintiff's claim for the rescission of the Reconveyance and Declaratory relief is granted. The Reconveyance executed on 11/4/2014 by MERS is void, and has no effect as to the Deed of Trust.

e. The Borrower failed to make the payment that was due for August 1, 2012 and has not cured the default. The amount of debt secured by the Deed of Trust that is now due and owing is comprised of the following amounts (the "Amount Due"):

a) Unpaid principal balance:	$231,761.25
b) Prejudgment interest accruing from 7/1/2012 through 12/4/2018 and continuing until the entry of judgment at the current Note rate of 7.75%:	$115,408.66

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c)	Additional amounts due under the terms of the loan:	$48,176.03
d)	Attorney fees and costs:	$5,183.52
e)	Prevailing party fee (ORS 20.190 (1)(a)):	$85.00
	Total:	**$400,614.46**

Pursuant to ORS 82.010 (2), post-judgment interest shall accrue on the Amount Due from the date of entry of this judgment through the sale of the Subject Property at the rate of 9.00% per annum.

f. The interest of the Defendants and any successor in interest in the Subject Property is foreclosed and terminated excepting only any statutory right of redemption as provided by Oregon law.

g. The Defendants are not entitled to a homestead exception as against Plaintiff's judgment.

h. All right, title and interest in the Subject Property that Defendants AGUSTINA L. MONCKTON and GERALD G. MONCKTON JR. had as of the date of the Deed of Trust or thereafter acquired is hereby ordered to be sold by the Washington County Sheriff's Office in accordance with the process for sale upon execution, and the proceeds of sale shall be applied:

1) First, to the costs of sale not incurred by Plaintiff;
2) Second, to the Amount Due, plus post-judgment interest accruing from the date of entry of judgment through the date of the sale and any incurred costs of sale;
3) Third, the surplus, if any, to the Defendants in the priority as their interest may appear, described *infra*, or to the clerk of the court to be distributed by the Court to such party or parties as they may establish their right thereto.

i. Plaintiff may become purchaser at the sale of the Subject Property and, pursuant to ORS 18.936 (2), may credit bid up to the Amount Due, plus post-judgment interest accruing from the date of entry of judgment through the date of the sale and any incurred costs of sale.

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j. The purchaser at the sale is entitled to exclusive and immediate possession of the Subject Property from and after the date of the sale and is entitled to such remedies as are available at law or in equity to secure possession. The purchaser at the sale may apply to the Court for a writ of assistance if any Defendant, other party, or other person shall refuse to surrender possession to the purchaser immediately upon the purchaser's demand for possession.

k. In the event the proceeds of sale are insufficient to pay the Amount Due, Plaintiff shall not be entitled to any further or other judgment, including a judgment for the deficiency.

l. If, before the sale, the Amount Due is brought into court and paid to the clerk, the execution, if issued, shall be recalled and the effect of the judgment as to the Amount Due shall be terminated.

m. Pursuant to ORS 18.950 (4), the apparent priority of liens subsequent and inferior to the Deed of Trust are as follows:

1) Defendants MERS and MMC may claim a junior interest in Subject Property by virtue of a deed of trust recorded 08/22/2006 as Instrument No. 2006-100655 in the official records of Washington County, Oregon.

2) Defendant TURNING LEAF HOMES LLC may claim an interest in Subject Property by virtue of a bargain and sale deed recorded 11/17/2014 as Instrument No. 2014-073078 in the official records of Washington County, Oregon.

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MCCARTHY & HOLTHUS, LLP
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3) Defendant SHADOW WOODS HOMEOWNERS ASSOCIATION may claim some interest or lien in the Subject Property by virtue of homeowners association covenants, conditions, and restrictions.

Signed: 12/17/2018 10:39 AM

Circuit Court Judge, Ricardo Menchaca

I hereby certify that the requirements of UTCR 5.100 have been satisfied.

On 12/4/2018, a copy of the Motion For Entry Of Judgment, Declaration Of Attorney Fees And Costs For Plaintiff, Declaration Of Amounts Due, Proposed Judgment Of Foreclosure was:

[x] Mailed to:

Ted A. Troutman
5075 SW Griffith Dr Ste 220
Beaverton, OR 97005
Attorney for Agustina L. Monckton and Gerald G. Monckton

Andrew Glasscock
6915 SW Macadam Ave., Ste. 300
Portland, OR 97219
Attorney for Turning Leaf Homes LLC

by placing the executed documents in the firm's outbox for mailing.

This proposed Judgment Of Foreclosure is ready for judicial signature because:

[ ] Each opposing party affected by this order or judgment has stipulated to the order or judgment, as shown by each opposing party's signature on the document being submitted.

[ ] Each opposing party affected by this order or judgment has approved the order or judgment, as shown by signature on the document being submitted or by written confirmation of approval sent to me.

[ ] I have served a copy of this order or judgment on all parties entitled to service and:

MCCARTHY & HOLTHUS, LLP
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[ ] No objection has been served on me.
[ ] I received objections that I could not resolve with the opposing party despite reasonable efforts to do so. I have filed a copy of the objections I received and indicated which objections remain unresolved.
[ ] After conferring about objections, _____ agreed to independently file any remaining objection.

[x] The relief sought is against an opposing party who has been found in default.

[ ] An order of default is being requested with this proposed judgment.

[ ] Service is not required pursuant to subsection (3) of this rule, or by statute, rule, or otherwise.

[ ] This is a proposed judgment that includes an award of punitive damages and notice has been served on the Director of the Crime Victims' Assistance Section as required by subsection (4) of this rule.

[ ] Other: _____

Dated: December 4, 2018, and submitted by:

McCarthy & Holthus, LLP

s/ Jeremy Clifford
Jeremy Clifford OSB No. 142987
920 SW 3rd Ave, 1st Floor
Portland, OR 97204
Phone: (971) 201-3200
Fax: (971) 201-3202
jclifford@mccarthyholthus.com
Of Attorneys for Plaintiff

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EXHIBIT “1”

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Exhibit 1
1 of 1